

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
KRYSTLE PAXTON-ABEL AND SHERYL PAXTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICERS JOHN DOE #1-6,
(FICTITIOUS NAMES BECAUSE THEIR IDENTITIES
ARE UNKNOWN), POLICE OFFICER ROBERT AND
CAPTAIN HERRARTE, ALL IN THE CAPACITY OF
POLICE OFFICERS AND INDIVIDUALLY, ALL
OFFICERS WERE FROM THE 112TH OR 114TH PCT.,

Defendants.

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**SUMMONS WITH
VERIFIED COMPLAINT**

Index No.:

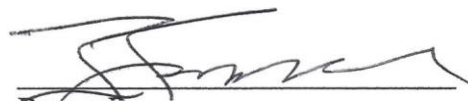
Date Purchased:

Plaintiff designates Queens
County as the place of trial.
The basis of the venue is
the place where the cause of
action arose.

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case you fail to appear or answer,
judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 13, 2024



Royce Russell, Esq.
R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiffs
112 West 34th Street #18 Fl.
New York, New York 10120
(718) 785-8890

Defendants address:

City of New York
C/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

The New York Police Department
One Police Plaza
New York, New York 10007

Police Officer John Doe #1-6
One Police Plaza
New York, New York 10007

Police Officer Robert
One Police Plaza
New York, New York 10007

Police Officer Captain Herrarte
One Police Plaza
New York, New York 10007

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The Plaintiffs, Krystle Paxton -Abel and Sheryl Paxton, and by their attorney, R-SQUARE,
ESQ. PLLC, complaining of the Defendants respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the Defendant, the City of New York, hereinafter referred to as “City”, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief that at all times hereinafter mentioned, the Defendant “City” its agents, servants, and employees operated, maintained, and controlled the Police Department of the City of New York hereinafter referred to as “NYPD” including all the police officers thereof.
3. That at all times hereinafter mentioned, specifically on the 15th day of April 2023, at approximately 8:45 pm at the location of 62-27 108th Street, Apartment 9A, Forest Hills, New York 11375, in the County of Queens within the State of New York hereafter referenced to as the “location”, the Plaintiffs were lawfully present and had not committed a crime.
4. Upon information and belief, that at all times hereinafter mentioned, specifically on the 15th day of April 2023 approximately 8:45 pm the Defendants John Doe #1-6, Officer

VERIFIED COMPLAINT

Index No.:

Date Purchased:

Robert and Captain Herrarte illegally occupied and used the Plaintiffs, Krystle Paxton - Abel and Sheryl Paxton's apartment.

5. Police Officers Defendants John Doe #1-6, Officer Robert and Captain Herrarte, hereinafter collectively referred to as "The Officers" were screened, interviewed, hired by the "City", trained by the "City", were retained by the "City", and were investigated, monitored, supervised and/or disciplined by the "City".
6. That the Plaintiffs filed and served a Notice of Claim on or about June 21, 2023, and an Amended Notice of Claim on April 13, 2024.
7. The City acknowledged receipt of the Notice of Claim(s), and 50(h) hearings were held on March 18, 2024.
8. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the Defendant, City of New York, and that said Defendant has neglected or refused to make any adjustment or payment thereof.
9. That this action is commenced within one year and 90 days after the cause of action arose.
10. Krystle Paxton-Abel and Sheryl Paxton are United States Citizens and are referred to hereinafter as "Paxtons"
11. Paxtons, at all relevant times hereunder, resides in the County of Queens, residing at the above "location".
12. Upon information and belief and at all times hereinafter mentioned, and specifically on the 15th day of April 2023, Defendants-Officers at approximately 8:45 pm illegally remained/occupied the Paxton's apartment. The Defendant-Officers remained present at and inside the location discarding the Plaintiffs' request to leave the location and not have a dead body enter their apartment. The Defendants were at the location on April 15, 2023, in Queens County, New York, and were acting within the scope of their employment and under the direction of the "City", and "NYPD" as their agents, servants, and/or employee(s).

13. On April 15, 2023, at approximately 8:45 pm, at 62-27 108th Street #9A, Forrest Hills, New York, the Plaintiffs heard a bang at the window of the Plaintiff's Sheryl room. The Plaintiffs immediately went into their bathroom, fearing they were being burglarized. Plaintiff Krystle called 911 and explained what she heard. Krystle waited and then called again because she did not receive a return call. Krystle received a call from a blocked number she believed to be Police Officer "Robert."
14. Notwithstanding Krystle recalling the name "Robert" herein, he is referred to as John Doe #1. Eventually, the Plaintiffs heard a knock at the door, and "Robert-John Doe #1" was present with other Officers-Defendants. Before entering the Plaintiffs' apartment, the Officers-Defendants were asked if they saw anything hanging from the side of the window. Krystle then pointed the Defendants to her mother Sheryl's bedroom. "Robert/John Doe" and other Defendants entered Sheryl's bedroom. Sheryl also entered her bedroom.
15. After Sheryl removed items from her window, "Robert/John Doe #1" opened the window and raised the shade. "Robert/John Doe" peered out the window and stated that the window bars needed to be removed. Sheryl told him that the bars couldn't be removed without special tools. Krystle informed the Defendants that she did not have the Superintendent's contact information. "Robert/John Doe #1" threatened to have the Plaintiffs' front door removed if they were not allowed to remove the window bars. At some point, Plaintiffs asked the Defendants to leave and not have the dead body enter their apartment. The defendants ignored this request and appeared with tools that allowed the bars to be removed.
16. During this time, Sheryl asked the Defendants not to bring the decedent into her apartment. Sheryl and Krystle repeatedly asked that the decedent's body not enter their apartment. Plaintiffs were assured several times by "Robert/John Doe #1" and other Defendants that the decedent's body would not be brought into the apartment and their privacy rights would not be violated. Moreover, there are protocols such as quarantine and sterilizing the apartment before and after the decedent is brought into a location.
17. The Plaintiffs repeatedly desired not to have the body enter their apartment and were assured that it would not. The Defendants using "foul language" ordered Sheryl to exit the

room, and the Defendants slammed the bedroom door in her face. Sheryl attempted to re-enter the room several times but was unsuccessful, given that the Defendants kept the pressure on the door to prevent Plaintiff Sheryl from re-entering her room.

18. At that point, Defendants illegally remained/occupied the Plaintiffs' apartment and more specifically Plaintiff Sheryl's room. Defendants kept pressure on the door to prevent Plaintiffs' re-entry. Sheryl continued to express her concerns while in her hallway.
19. More Officers/Defendants entered the apartment and the bedroom, and the door remained closed. Hours passed as the Defendants illegally remained in the Plaintiffs' apartment and the Plaintiffs were held prisoners in their living room and hallway not able to leave or enter Sheryl's room.
20. The Plaintiffs then observed Defendants with a body bag. Once again, the Plaintiffs expressed their concerns again. Plaintiffs conversed with Defendants located at their apartment door who expressed bringing the body into the home was appropriate and would show grace to his family. The Plaintiffs responded that their mental health would be affected if the body entered the apartment. The Plaintiffs asked why showing grace and dignity to the white decedent overrides the Plaintiffs-African American's mental health.
21. Eventually, the bedroom door opened, and the decedent was transported through the apartment. The Defendants did not quarantine or sterilize the apartment before or after the decedent was transported through the apartment. The Defendants used one "Wet wipe" to clean the blood on the floor.
22. The Plaintiffs asked Captain Herrarte about mental health support, particularly relocation for the night. Captain Herrarte replied that he was the Captain of the 114th pct. covering the 112th pct., and they are not required to quarantine or relocate only in homicide cases. Captain Herrarte stated someone would contact the Plaintiffs; however, they were never contacted.
23. Defendants never covered any items in Sheryl's bedroom to ensure no cross-contamination. The Defendants did not follow best practices, such as calling the fire department to remove the decedent from the outside using a ladder.

24. Defendants imprisoned the Plaintiffs and illegally searched their personal property, such as Krystle's dresser and chest. Plaintiff's Sheryl glasses, shorts, and other personal items were missing, and her room was ransacked.
25. Lastly, the Defendants failed to retrieve the decedent's personal bags and cell phone. The decedent's cell phone and personal bags were left in Sherly's room. The Plaintiffs' apartment was seized for approximately five hours (8:45 pm-1:00 am).
26. All aforementioned conduct was committed by the City of New York, their agents, servants, or employees while acting in the scope of their employment.
27. That Defendants-Officers, individually and collectively, at all relevant times hereunder, acted as Police Officers, and were required to follow the rules and regulations as contained in the New York City Patrol Guidelines.
28. Plaintiffs were emotionally upset and suffered from depression and anxiety. Plaintiffs suffer from hypervigilance and anxiety.
29. The acts of the Defendants constituted an illegal remained/occupied, search and seizure of the Plaintiffs and their apartment, imprisoned the Plaintiffs, invaded their right to privacy, and inflicted emotional distress upon the Plaintiffs.
30. At no time did any named, known, or unknown officers intervene in the illegal detention, search, seizure, invasion of privacy, and abuse of power/authority on behalf of the Plaintiffs.
31. Plaintiffs sustained emotional injury as a result of the Defendants' conduct.
32. That this action falls within one of the exceptions of CPLR 1601.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFFS, KRYSTLE
AND SHERYLE PAXTON AGAINST ALL NAMED DEFENDANTS FOR FALSE
DETENTION /IMPRISONMENT**

33. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in

34. paragraphs marked "1" through "32" with the same force and effect as if more fully and at length set forth herein.
35. That beginning on or about the 15th day of April 2023, at approximately 8:45 pm and 1:00 am at 62-27 108th Street, Apartment #9A in the County of Queens, New York, the Defendants and their agents, servants and/or employees intentionally detained and seized the Plaintiffs and illegally remained in/occupied their apartment without the Plaintiffs' consent and any just cause or grounds to do so. Defendants illegally searched and converted Plaintiff Sheryl's personal property.
36. That said search and seizure was caused by the Defendants, their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law, and without any reasonable grounds or any cause to believe that the Plaintiffs were guilty of any crimes.
37. The Plaintiffs were wholly innocent of any crimes and did not contribute in any way or manner to the illegal search and seizure, invasion of privacy, and detention by the Defendants, their agents, servants, and/or employees, and were forced to submit to the aforesaid illegal search and seizure invasion of privacy, and detention entirely against their will.
38. That the Defendants, their agents, servants, and/or employees, as set forth above, intended to confine the Plaintiffs, in that the Plaintiffs were conscious of their confinement, the Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
39. That by reason of the aforesaid false detention/imprisonment, Plaintiffs were subjected to great indignity, humiliation, pain, and great distress of mind and body, and the said Plaintiffs were otherwise damaged.
40. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS AGAINST ALL NAMED DEFENDANTS
FOR INVASION OF PRIVACY:**

41. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if fully set forth herein.
42. Upon information and belief, on or about the 15th day of April 2023, commencing between approximately 8:45 pm and 1:00 am at 62-27 108th Street, Apartment #9A at the location in the County of Queens, New York, Defendants "Officers", while acting in the scope of their employment as police officers and as agents for the Defendant the "City", did occupy/remain in the Plaintiffs' apartment without consent and illegally seized, and searched Plaintiffs' apartment without exigent circumstances or just cause.
43. As a result of the Defendant Officers' actions, Plaintiffs suffered great indignity, humiliation, pain and great distress of mind and body, anxiety, hypervigilance, and depression.
44. That the Defendants, their agents, servants, and/or employees, including but not limited to the "Officers" were acting as agents on behalf of the Defendant "City", within the scope of their employment, intentionally and willfully seized the Plaintiffs' apartment and persons.
45. That the "Officers" were unreasonable and did not use best practices like contacting the FDNY or ESU in the matter; rather the Defendants illegally occupied/remained, searched, seized, the Plaintiff's apartment, and falsely detained and imprisoned the Plaintiffs.
46. That said acts occurred within the scope of the Police Officers' employment with the "City."
47. That by reason of the aforesaid intentional battery and assault, the Plaintiffs suffered and continues to suffer from the psychological injuries and was rendered sick, sore, and lame, and among other things suffered conscious pain and suffering, and that they were otherwise damaged.

48. That by reason of the aforesaid battery the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFFS FOR NEGLIGENCE

49. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked "1" through "48" with the same force and effect as if more fully and at length set forth herein.

50. That the Defendants, "City" and/or "NYPD" were careless and reckless in hiring, retaining, assigning, training, and failing to retrain, monitoring, supervising, and promoting as and for its employees, Defendants "Officer(s)," in that said employee(s) lacked the experience, deportment and ability to be employed by the Defendants in the capacity in which they were utilized, i.e. as Police Officers; in that the Defendant, "City" and/or "NYPD" failed to exercise due care and caution in its hiring and promoting practices; in that the Defendant "City" and/or "NYPD" failed to investigate the above-named employees' backgrounds; in that the "City" and/or "NYPD" failed to properly train, supervise and monitor the "Officer(s)"; and in that the Defendant "City" and/or "NYPD" were negligent in disciplining, retaining and retraining the named Defendants "Officer(s)"; and in that the Defendants, their agents, servants, and employees, were otherwise careless, negligent and reckless.

51. That upon information and belief, the "City" by and through its agents had received numerous civilian complaints and/or lawsuits, against the Defendants "Officer(s)" and/or the "NYPD" that they were assigned to, before the seizure, search, and discourtesy, and false detention/imprisonment of the Plaintiffs on April 15, 2023.

52. That the "City" failed to properly retrain said "Officer(s)", negligently continued to employ said "Officer(s)", negligently retrained "Officer(s)" despite evidence of their police misconduct and continued to assign said "Officer(s)" to act in their capacities as Police Officers without proper supervision, training, and discipline.

53. That the “Officer(s),” while acting within the scope of their employment, were negligent; in that each failed to use such care in the performance of their police duties as a reasonable prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed their police duties; in that they failed to intervene or mitigate police misconduct; in that, the police department permitted or conducted the false arrest and/or permitted the submission of false documentation by these and other officers; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.
54. That the aforesaid occurrence, to wit: false detention/imprisonment illegal search and seizure, resulting in injuries to mind and body therefrom, were caused wholly and solely because of the negligence of the Defendants, its agents, servants, and/or employees including the Defendant “Officer(s)” without any negligence on the part of the Plaintiffs contributing thereto.
55. That because of the aforesaid, the Plaintiffs were imprisoned, lost their freedom and were stressed, and they were thereby damaged.
56. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS AGAINST ALL NAMED DEFENDANTS FOR INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS:**

57. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked “1” through “56” with the same force and effect as if fully set forth herein.
58. The New York City Police Officers including, but not limited to, the Defendant Officers acting in the scope of their employment, acted in a manner including, but not limited to, the allegations outlined in the Statement of Facts herein that exceeded all reasonable bounds of decency with the intent to inflict emotional distress upon each of the named

Plaintiffs.

59. That the Plaintiffs did sustain emotional distress as a result of the officers' misconduct and the City as the Officers' employer.

60. Plaintiffs Krystle and Sheryle have been depressed and suffer from anxiety as a result of the Defendants-Officers' conduct. They suffer sleeplessness as they continue to fear the police breaking into her apartment. Also, as they relive the corpse and blood in their apartment.

61. Plaintiffs never returned to their apartment and were relocated.

62. Plaintiffs suffer from depression, hypervigilance, and anxiety.

63. That because of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS FOR
VIOLATION OF THEIR NEW YORK STATE CONSTITUTIONAL RIGHTS
AGAINST AN ILLEGAL SEARCH AND SEIZURE AGAINST ALL NAMED
DEFENDANTS AND THE CITY OF NEW YORK**

64. That Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "63" with the same force and effect as if more fully and at length set forth herein.

65. That upon information and belief, on or about the 15th day of April 2023, commencing between approximately 8:45 pm and 1:00 am at the location, Defendant "Officers" were present as part of their regular course of business with the City of New York.

66. That Plaintiffs were lawfully present and resided at the location.

67. That the "Officers", without a warrant, illegally remained/occupied the apartment of the Plaintiffs, searched the Plaintiffs' home, and seized the Plaintiffs' home and Plaintiff Sheryl's room during said illegal search and seizure.

68. That the Plaintiffs were imprisoned by the “Officers” who were acting as agents, servants, and/or employees of the Defendant City, without provocation to detain, imprison, seize, illegally remain/occupy and search the Plaintiffs’ home which resulted in emotional distress.
69. That all acts committed by the “Officers” and other agents, servants, and/or employees and/or agents of the Defendant “City” were committed within the scope of their employment and under color of law, and while said officer was acting under the custom, policy, rules and/or regulations of the City.
70. That said acts constituted an illegal search and seizure of the Plaintiffs’ apt./home and deprived the Plaintiffs of their rights and liberties as outlined in the Constitution of the State of New York.
71. That said acts violated the Plaintiffs’ rights to due process of law.
72. That the Defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal searches and seizures, false arrests, condoning or tolerating excessive or arbitrary use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to properly supervise, train, investigate or discipline officers; engaging in a pattern of falsely accusing individuals who were victims of excessive use of force with having committed a crime to cover up illegal police conduct; and engaging in a police cover-up, any and for all of the above contributing to Plaintiffs’ illegal search and seizure, detention and injuries.
73. The City negligently trained, retained, supervised, disciplined, monitored, and/or investigated the Defendant Officers, when, upon information and belief they knew of their violent propensities and prior bad acts.
74. The Defendants’ actions on April 15, 2023 were performed under the color of the policies, statutes, ordinances, rules, and regulations of the City of New York.

75. That the Plaintiffs did not commit any illegal act, either before or at the time they were illegally searched and seized, falsely detained, battered, assaulted, and deprived of their constitutional rights as outlined in the Constitution of the State of New York.

76. That because of the aforesaid, the Plaintiffs were injured in mind and body, and they were damaged.

77. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court and seek punitive damages, costs, attorney's fees, expert fees and such other relief as to the Court may seem just and proper.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS FOR
VIOLATION OF PERSONAL CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. 1983
AGAINST THE CITY OF NEW YORK**

78. That Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "77" with the same force and effect as if more fully and at length set forth herein.

79. That upon information and belief, on or about the 15th day of April 2023, commencing between the hours of 8:45 pm-1:00 am at 62-27 108th Street, Apartment 9A in the County of Queens, New York, Defendant, the "Officers" were present as part of their regular course of business with the City of New York.

80. That Plaintiffs were lawfully present and resided at 62-27 108th Street, Apartment 9A in the County of Queens, New York in the County of Queens, New York.

81. That the "Officers", without a warrant, illegally remained in/occupied, searched, seized the Plaintiffs' apartment, and detained the Plaintiffs.

82. That the Plaintiffs were falsely detained and imprisoned by the "Officers", acting as agents, servants, and/or employees of the Defendant City without provocation to detain, imprison, search, and seize the Plaintiffs' apartment. The Plaintiffs suffered emotional distress.

83. That all acts committed by the “Officers” and other agents, servants, and/or employees and/or agents of the Defendant “City” were committed within the scope of their employment and under color of law, and while said officer was acting under the custom, policy, rules and/or regulations of the City.
84. That said acts constituted an illegal seizure of the Plaintiffs and deprived the Plaintiffs of their rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.
85. That said acts violated the Plaintiffs’ rights to due process of law.
86. That the Defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and /or police practices which included illegal searches, seizures, false arrests, condoning or tolerating excessive or arbitrary use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to properly supervise, train, investigate or discipline officers; engaging in a pattern of falsely accusing individuals who were victims of excessive use of force with having committed a crime to cover up illegal police conduct; and engaging in a police cover-up, any and for all of the above contributing to plaintiff’s false detention, imprisonment and injuries.
87. The City negligently trained, retained, supervised, disciplined, monitored, and/or investigated the Defendant Officers, when, upon information and belief they knew of their violent propensities and prior bad acts.
88. The Defendants’ actions on April 15, 2023, were performed under the color of the policies, statutes, ordinances, rules, and regulations of the City of New York.
89. That the Plaintiffs did not commit any illegal act, either before or at the time he was falsely detained and imprisoned, battered, assaulted, and deprived of their constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

90. That by reason of the aforesaid, the Plaintiffs were injured in mind and body, and they were damaged.

91. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court and seek punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS FOR MALICIOUS ABUSE OF AUTHORITY UNDER 42 U.S.C. § 1983,
BY "JOHN, JIM, JAMES POLICE OFFICER ROBERT AND CAPTAIN
HERRARTE" EACH IN THEIR INDIVIDUAL CAPACITY AND AS AN AGENT OF
THE CITY OF NEW YORK**

92. Plaintiffs repeat, reinstate, and realleges each and every allegation contained in paragraphs "1" through "91" with the same force and effect as if fully set forth herein.

93. Defendant "Officers" abused their authority by intentionally imprisoning, the Plaintiffs and illegally searching, seizing, and falsely detaining the Plaintiffs without a valid warrant or exigent circumstances thereby violating the Plaintiffs' rights.

94. The Defendant "Officers" caused Plaintiffs to be subjected to great indignity, humility, pain, and distress of mind and body when they detained them without any reasonable grounds, or any cause to believe that they were guilty of any crimes.

95. Defendants further abused their authority and power by using unreasonable force to effectuate the illegal entry into the Plaintiffs' home and the search and seizure-detention thereof the Plaintiffs.

96. As a result of the foregoing, Plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

**AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C.
SECTION 1983, BY “JOHN JIM, JAMES, POLICE OFFICER ROBERT AND CAPTAIN
HERRARTE”, EACH IN THEIR INDIVIDUAL CAPACITY AND AS AN AGENT OF
THE CITY OF NEW YORK**

97. That Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "96" with the same force and effect as if more fully and at length set forth herein.

98. That at all times hereinafter mentioned, the “Officers” were employed by the Defendant, The City of New York, and/or The New York City Police Department, and each was acting under the color of his official capacity, and their acts and actions were performed under the color of the policies, statutes, ordinances, rules, and regulations of the City of New York.

99. That at all times hereinafter mentioned, the “Officers” acted pursuant to orders and directives from Defendant, The City of New York.

100. That during all times hereinafter mentioned, the “Officers” acted under the color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs, and usages of The City of New York and/or New York City Police Department, and that they were acting under the color and pretense of law, and engaged in the illegal conduct outlined in this complaint to the injury of the Plaintiffs, and deprived them of the rights, privileges and immunities secured to them by the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and the State of New York and U.S.C. Section 1983 and/or Section 1986.

101. That the unlawful and illegal conduct of the Defendant Officers deprived the Plaintiffs of the following rights, privileges, and immunities secured to them by the Constitution of the United States and of the State of New York:

- a. The right of Plaintiffs to be secure in their person home and effects against unreasonable seizure and the right not to be subjected to excessive force, under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

- b. The right of Plaintiffs to have equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.
- c. The right to be free of cruel and unusual punishment.
- d. The right not to be discriminated against based on race, age, or creed.
- e. The right to prompt and necessary medical attention.
- f. The right to due process of law.

102. That by reason of the aforesaid violations, use of force, use of arbitrary, unreasonable force, seizure of the Plaintiffs' home and persons, and by the false detention/imprisonment; the Officers' conspiracy to violate the Plaintiffs' due process of law and violated Plaintiffs' rights and privileges as provided to them in the Constitution of the United States of America and provided to them in the Constitution of the State of New York, and laws thereto, the Defendant Officers violated 42 U.S.C. §1983.

103. That as a direct proximate result of the Defendants' actions, the Plaintiffs were subjected to great indignities and humiliation, and pain and distress of mind and body and were humiliated and defamed thereby.

104. That by reason of the aforesaid, the Plaintiffs were injured in mind and body, still suffer, and upon information and belief, will continue to suffer great physical and mental pain, and they have expended and incurred divers sums of money to cure themselves of said injuries, to extricate themselves from the indignities and humiliation fostered upon them by the actions of the "Officers", individually and collectively.

105. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdiction of the lower courts, and seek compensatory damages, plus, punitive damages, costs, attorney's fees, and expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR AN NINTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS ALLEGING ILLEGAL CONVERSION OF PROPERTY BY JOHN
DOE #1-6, POLICE OFFICER ROBERT, AND CAPTAIN HERRARTE EACH IN
THEIR INDIVIDUAL CAPACITY AND AS AN AGENT OF THE CITY OF NEW
YORK AND THE DEFENDANT THE CITY OF NEW YORK**

106. That Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "105" with the same force and effect as if more fully and at length set forth herein.

107. That upon information and belief, on or about the 15th day of April 2023, commencing between the hours of 8:45 pm-1:00 am at 62-27 108th Street, Apartment 9A in the County of Queens, New York, Defendants, the "Officers" were present as part of their regular course of business with the City of New York.

108. That Plaintiffs were lawfully present and resided at 62-27 108th Street, Apartment 9A in the County of Queens, New York.

109. That the "Officers", without a warrant, illegally occupied/remained in the apartment of the Plaintiffs, illegally searched and seized the Plaintiffs' apartment.

110. That the Defendants-Officers illegally removed personal items from Plaintiff's Sheryl room.

111. The Plaintiffs never received a property invoice for the converted/confiscated money.

112. That all acts committed by the "Officers" and other agents, servants, and/or employees and/or agents of the Defendant "City", were committed within the scope of their employment and under color of law, and while said officer was acting under the custom, policy, rules and/or regulations of the City.

113. That said acts constituted an illegal seizure and conversion of the Plaintiffs' property and a deprivation of Plaintiffs' rights and liberties as set forth in the Constitutions of the State of New York.

114. That said acts violated the Plaintiffs' rights to due process of law.

115. That the Defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal searches and seizures, false arrests, condoning or tolerating excessive or arbitrary use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to properly supervise, train, investigate or discipline officers; engaging in a pattern of falsely accusing individuals who were victims of excessive use of force with having committed a crime to cover up illegal police conduct; and engaging in police cover-up, any and for all of the above contributing to Plaintiffs' illegal search and seizure, battery, detention and conversion as well as injuries.

116. The City negligently trained, retained, supervised, disciplined, monitored, and/or investigated the Defendant Officers, when, upon information and belief they had knowledge of their violent propensities and prior bad acts.

117. The Defendants' actions on April 15, 2023 were performed under the color of the policies, statutes, ordinances, rules, and regulations of the City of New York.

118. That the Plaintiffs did not commit any illegal act, either before or at the time they were illegally searched and seized, falsely detained, battered, assaulted, and deprived of their constitutional rights as outlined in the Constitution of the State of New York.

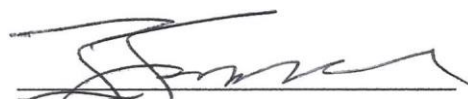
119. That by reason of the aforesaid, the Plaintiffs were injured in mind and body, and they were damaged.

120. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court and seek punitive damages, costs, and attorney's fees, expert fees and such other relief as to the Court may seem just and proper.

WHEREFORE, the Plaintiffs demand judgment against the defendants on the First through Seventh causes of action in a sum to be determined by the trier of fact, plus costs,

attorney's fees, punitive damages, and such other relief as to the court seems just and proper on the First through Ninth causes of action, and such further relief as to the court seems just and proper.

DATED: New York, New York
April 13, 2024

A handwritten signature in black ink, appearing to read "Royce Russell", is written over a horizontal line.

Royce Russell, Esq.
R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiffs
112 West 34th Street #18 Fl.
New York, New York 10120
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorneys of record for the Plaintiffs in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the County in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
April 13, 2024


By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

KRYSTLE PAXTON-ABEL AND SHERYL PAXTON,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICERS JOHN DOE #1-6, (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN), POLICE OFFICER ROBERT AND CAPTAIN HERRARTE, ALL IN THE CAPACITY OF POLICE OFFICERS AND INDIVIDUALLY, ALL OFFICERS WERE FROM THE 112TH OR 114TH PCT.,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.
Attorney for Plaintiff
112 West 34TH Street Fl. 18
New York, NY 10120
(718) 785-8890

To: City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, NY 10007

The New York City Police Department
1 Police Plaza
New York, New York 10007

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 13, 2024

Signature


By: Royce Russell, Esq.

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PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a _____ duly entered in the office of the
clerk of the within named court on _____
- ☐ NOTICE OF SETTLEMENT
that a _____ of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on _____